

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Russo	Team: Squad #10	CCRB Case #: 202205455	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 08/09/2022 11:45 PM	Location of Incident: Jerome Avenue and West 170th Street	18 Mo. SOL 2/9/2024	Precinct: 44		
Date/Time CV Reported Wed, 08/10/2022 4:30 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 08/19/2022 9:19 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Jason Lopez	16092	950773	SRG 2
2. PO Michael Riggio	10159	951140	SRG 2
3. PO Luis Ortiz	01133	956142	SRG 2
4. PO Steve Silverstein	19561	959234	SRG 2
5. SGT David Vargas	05180	947569	SRG 2
6. PO Frankie Dodd	00195	954741	SRG 2
7. PO Dennis Gannon	23133	947015	SRG 2
8. PO Paula Martorella	11978	940455	SRG 2

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Brian Siennick	05821	955490	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Jason Lopez	Force: Police Officer Jason Lopez used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . PO Michael Riggio	Force: Police Officer Michael Riggio used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO Frankie Dodd	Force: Police Officer Frankie Dodd used physical force against § 87(2)(b)	C . Miscellaneous - Subject Retired
D . SGT David Vargas	Abuse: Sergeant David Vargas threatened § 87(2)(b) with the use of force.	D . Substantiated
E . PO Frankie Dodd	Discourtesy: Police Officer Frankie Dodd spoke discourteously to § 87(2)(b)	E . Miscellaneous - Subject Retired
F . SGT David Vargas	Discourtesy: Sergeant David Vargas spoke discourteously to § 87(2)(b)	F . Substantiated
G . PO Michael Riggio	Force: Police Officer Michael Riggio used physical force against § 87(2)(b)	G . Within NYPD Guidelines
H . PO Jason Lopez	Force: Police Officer Jason Lopez used physical force against § 87(2)(b)	H . Within NYPD Guidelines
I . PO Steve Silverstein	Force: Police Officer Steve Silverstein used physical force against § 87(2)(b)	I . Within NYPD Guidelines
J . PO Frankie Dodd	Force: Police Officer Frankie Dodd used physical force against § 87(2)(b)	J . Miscellaneous - Subject Retired
K . PO Steve Silverstein	Force: Police Officer Steve Silverstein used a chokehold against § 87(2)(b)	K . Unable to Determine

Officer(s)	Allegation	Investigator Recommendation
L . PO Steve Silverstein	Force: Police Officer Steve Silverstein restricted § 87(2)(b) breathing.	L . Unable to Determine
M . PO Michael Riggio	Abuse: Police Officer Michael Riggio damaged § 87(2)(b) property.	M . Within NYPD Guidelines
N . PO Steve Silverstein	Abuse: Police Officer Steve Silverstein damaged § 87(2)(b) property.	N . Within NYPD Guidelines
O . PO Luis Ortiz	Force: Police Officer Luis Ortiz used physical force against § 87(2)(b)	O . Within NYPD Guidelines
P . PO Luis Ortiz	Force: Police Officer Luis Ortiz used a chokehold against § 87(2)(b)	P . Unable to Determine
Q . PO Luis Ortiz	Force: Police Officer Luis Ortiz restricted § 87(2)(b) breathing.	Q . Unable to Determine
R . PO Michael Riggio	Force: Police Officer Michael Riggio used physical force against § 87(2)(b)	R . Within NYPD Guidelines
S . PO Jason Lopez	Force: Police Officer Jason Lopez used physical force against § 87(2)(b)	S . Within NYPD Guidelines
T . SGT David Vargas	Force: Sergeant David Vargas used physical force against § 87(2)(b)	T . Within NYPD Guidelines
U . PO Dennis Gannon	Force: Police Officer Dennis Gannon used physical force against § 87(2)(b)	U . Within NYPD Guidelines
V . PO Paula Martorella	Force: Police Officer Paula Martorella used physical force against § 87(2)(b)	V . Within NYPD Guidelines
W . PO Luis Ortiz	Force: Police Officer Luis Ortiz used physical force against § 87(2)(b)	W . Within NYPD Guidelines
X . PO Luis Ortiz	Force: Police Officer Luis Ortiz used physical force against § 87(2)(b)	X . Substantiated

Case Summary

On August 10, 2022, Captain Hector Barias, of Strategic Response Group 2, filed this complaint with the Internal Affairs Bureau on behalf of § 87(2)(b) under original log number § 87(2)(b). On August 19, 2022, the CCRB received this complaint.

On August 9, 2022, at approximately 11:45 p.m., Police Officers Jason Lopez and Michael Riggio, of Strategic Response Group 2, placed § 87(2)(b) under arrest for having a suspended license. Additional officers arrived on scene shortly after the arrest, including Police Officers Luis Ortiz, Michael Riggio, Steve Silverstein, Dennis Gannon, Brian Siennick, Paula Martorella, and Sergeant David Vargas, all of Strategic Response Group 2. While searching § 87(2)(b) PO Lopez lifted § 87(2)(b) left leg in the air, causing § 87(2)(b) to complain (**Allegation A: Force-Physical Force, within NYPD guidelines**).

After searching § 87(2)(b) incident to arrest, PO Riggio and PO Dodd pushed § 87(2)(b) into the rear of a police vehicle (**Allegation B: Force-Physical Force, within NYPD guidelines; Allegation C: Force-Physical Force, miscellaneous-subject retired**). § 87(2)(b) requested to go to the hospital as the officers pushed him inside the vehicle. Sgt. Vargas threatened to use his Taser on § 87(2)(b) (**Allegation D: Abuse of Authority-Threat of Force, substantiated**). While the officers continued struggling to place § 87(2)(b) in the vehicle, PO Dodd told him to “stop being an idiot” and called him a “fucking clown” (**Allegation E: Discourtesy-Word, miscellaneous-subject retired**). PO Vargas told § 87(2)(b) to “stop acting like a “little kid” and “a little baby” several times throughout the struggle (**Allegation F: Discourtesy-Word, substantiated**). PO Riggio, PO Lopez, and PO Silverstein continued pushing § 87(2)(b) into the vehicle (**Allegations G, H, and I: Force-Physical Force, within NYPD guidelines**). § 87(2)(b) asked, “why you stomping my feet for,” while PO Dodd conducted a motion consistent with pressing down with his lower body (**Allegation J: Force-Physical Force, miscellaneous-subject retired**). While PO Silverstein pushed § 87(2)(b) upper body into the vehicle, § 87(2)(b) screamed that PO Silverstein made contact with the front of § 87(2)(b) neck (**Allegation K: Force-Chokehold, unable to determine**) (**Allegation L: Force-Restricted Breathing, unable to determine**). § 87(2)(b) also stated that PO Silverstein and PO Riggio ripped his clothes (**Allegations M and N: Abuse of Authority-Property Damage, within NYPD guidelines**).

From the opposite side of the vehicle, PO Riggio brought § 87(2)(b) completely inside by pulling his legs (**Subsumed in Allegation G**). § 87(2)(b) legs remained outside of the vehicle, and PO Ortiz pushed them inside (**Allegation O: Force-Physical Force, within NYPD guidelines**). Meanwhile, § 87(2)(b) screamed that he was choked (**Allegation P: Force-Chokehold, unable to determine**) (**Allegation Q: Force-Restricted Breathing, unable to determine**).

When the ambulance arrived, the officers escorted § 87(2)(b) to the ambulance. The officers placed § 87(2)(b) onto a gurney, pressing down on his legs and pulling his upper body backwards to secure the straps (**Allegations R S, T, U, and V: Force-Physical Force, within NYPD guidelines**). § 87(2)(b) complained that PO Ortiz used his elbow to press down on his legs while on the gurney, both inside and outside of the ambulance (**Allegation W: Force-Physical Force, within NYPD guidelines**) (**Allegation X: Force-Physical Force, substantiated**).

The officers escorted § 87(2)(b) to § 87(2)(b) Hospital. § 87(2)(b) was arrested as a result of this incident, under arrest # § 87(2)(b) (BR11). The charges included resisting arrest, obstruction of governmental administration, disorderly conduct, reckless driving, and several other VTL violations.

The investigation obtained body-worn camera videos from all of the named officers (BR01, BR02). The relevant footage will be discussed below.

Findings and Recommendations

Allegation (A) Force: Police Officer Jason Lopez used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer Michael Riggio used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Frankie Dodd used physical force against § 87(2)(b)

PO Lopez's BWC (BR03) captures the officers initially stopping § 87(2)(b) vehicle during a routine vehicle checkpoint, starting at the 01:00 mark. Once obtaining his driver's license, PO Lopez places § 87(2)(b) under arrest for having a suspended license. At the 09:10 mark, PO Lopez searches § 87(2)(b) incident to a lawful arrest. § 87(2)(b) moves his body left and right, complaining that the officers are just bothering him. PO Lopez tells § 87(2)(b) to move his left foot out. § 87(2)(b) does not move. PO Lopez grabs underneath § 87(2)(b) left thigh, and § 87(2)(b) asks why PO Lopez is grabbing his leg like that. PO Lopez says he instructed him to spread his legs so he could search him. At the 09:31 mark, PO Lopez lifts § 87(2)(b) legs in the air by grabbing underneath the thigh with his left hand and pulling on the ankle area of his pants. It is unclear if § 87(2)(b) lifts his leg up further or if PO Lopez does so. At the 09:39 mark, PO Lopez pulls § 87(2)(b) leg toward the ground, but § 87(2)(b) keeps it in the air. § 87(2)(b) places his leg back on the ground at the 09:47 mark.

At the 09:58 mark, the officers tell § 87(2)(b) to get in the car. PO Riggio has his right hand hooked underneath § 87(2)(b) handcuffed arms and guides § 87(2)(b) toward the rear of the police vehicle. § 87(2)(b) moves his body in the opposite direction and says he does not want to go with them and that he wants to go to the hospital. PO Riggio pushes § 87(2)(b) toward the vehicle. PO Dodd lifts § 87(2)(b) left leg in the air and pulls him toward the vehicle. § 87(2)(b) keeps his body straight, refusing to enter the vehicle. He screams that he wants to kill himself and that he wants to go to the hospital.

PO Riggio's (BR08), PO Dodd's (BR05), PO Siennick's (BR06), PO Silverstein's (BR29), and Sgt. Vargas's (BR04) BWC also capture these allegations and are consistent with PO Lopez's BWC.

§ 87(2)(b) did not recall this incident and was unable to provide a statement (BR30). The IAB referral, initially documenting this complaint (BR31), was filed on § 87(2)(b) behalf, based on BWC.

PO Riggio's statement (BR10) was generally consistent with PO Lopez's BWC. He added that while placing § 87(2)(b) in the police vehicle, § 87(2)(b) screamed that he wanted to go to the hospital. The officers continued to place him in the vehicle because they did not want him to hurt himself or run away, given that he was irate and suicidal. PO Riggio believed that he and PO Ortiz were initially involved in pushing § 87(2)(b) into the vehicle to overcome § 87(2)(b) kicking. PO Riggio was unable to specify what the other officers on scene did to assist.

PO Lopez's statement (BR09) was also generally consistent with his BWC. When searching § 87(2)(b) he became combative by stiffening his body and pulling his leg away. When PO Lopez was searching § 87(2)(b) leg near the crotch, § 87(2)(b) would not open his leg up. PO Lopez pulled his leg open, and § 87(2)(b) pulled it back. PO Lopez lifted § 87(2)(b) leg up. PO Lopez was unsure if § 87(2)(b) would kick him. After the search, PO Lopez walked to the rear driver's side of the vehicle when the officers initially placed § 87(2)(b) into the vehicle and was unable to specify the roles of the other officers.

According to the Department Advocate Office, PO Dodd retired from the NYPD on September 9, 2022 (BR13). As such, the investigation did not obtain a statement.

Threat, Resistance, or Injury Report # § 87(2)(b) (BR14) documents this incident generally, noting that § 87(2)(b) became combative toward the officers and did not want to enter the police vehicle. The listed officers tried to gently place him in the vehicle, but § 87(2)(b) kept pushing and shoving the officers. The type of force is noted as wrestling/grappling, with the reason noted as active resistance toward MOS.

Threat, Resistance, or Injury Report # § 87(2)(b) (BR32) documents PO Lopez's

specific use of force. The force against MOS is noted as wrestling/grappling and active resistance. The actions taken by MOS are noted as wrestling/grappling, in order to overcome resistance or aggression, stop self-inflicted harm, and to defend other MOS.

Medical Treatment of Prisoner Report #§ 87(2)(b) (BR23) notes, in the remarks, that§ 87(2)(b) became highly combative when taken into custody—pushing, kicking, twisting his body, and refusing simple instruction. The media section documents minimal abrasions on § 87(2)(b) right shoulder. No other injuries are documented.

Patrol Guide Procedure 221-01 (BR15) states that when determining if force is reasonable, uniformed members of service should consider the following: “The nature and severity of the circumstances, actions taken by the subject, duration of the action, immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to the number of MOS, size, age, and condition of the subject in comparison to the MOS, subject’s violent history, if known, presence of hostile crowd or agitators, subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.”

Patrol Guide Procedure 221-02 (BR16) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control.

§ 87(2)(g)

the footage clearly captures § 87(2)(b) keeping his leg in the air, despite PO Lopez pulling it down and telling him to stop moving his leg. § 87(2)(g)

Thus, it is recommended that **Allegation A** be closed as **within NYPD guidelines**.

The BWC captures § 87(2)(b) physically resisting the officers’ efforts to place him in the police vehicle after he was deemed under arrest for driving with a suspended license. § 87(2)(b) also failed to comply with verbal commands to get in the vehicle. § 87(2)(g)

As such, it is recommended that **Allegation B** be closed as **within NYPD guidelines**.

§ 87(2)(g) it is recommended that **Allegation C** be closed as **miscellaneous-subject retired**.

Allegation (D) Abuse of Authority: Sergeant David Vargas threatened § 87(2)(b) with the use of force.

Sgt. Vargas’s BWC (BR04) captures him arriving on scene at the 01:00 mark. When he approaches, PO Riggio and PO Dodd are holding § 87(2)(b) who is already handcuffed. PO Silverstein and PO Lopez were also in his immediate vicinity. PO Riggio pushes § 87(2)(b) toward the rear of the vehicle while holding his arms, and PO Dodd lifts his left leg, pulling it toward the vehicle. § 87(2)(b) refuses to enter, holding his body outside of the vehicle and screaming that he wants to kill himself and that he wants to go to the hospital. The officers continue

placing him in the vehicle. At the 01:45 mark, Sgt. Vargas tells the officers to back up because he is going to “Tase” § 87(2)(b) screams that he does not want to go with the officers and that he is scared for his life. At the 01:57 mark, Sgt. Vargas tells § 87(2)(b) that he has to “get in there” or he is going to get Tased.

§ 87(2)(b) did not recall this incident and was unable to provide a statement (BR30).

Sgt. Vargas stated (BR18) that while § 87(2)(b) was being placed in the vehicle, he was pushing and kicking toward the officers, but Sgt. Vargas was unsure if the kicks landed on any officer. Nonetheless, § 87(2)(b) did not pose a threat to the officers. Sgt. Vargas threatened to use his Taser to gain compliance but had no intention of using it. He unholstered the Taser but did not ever activate it. Sgt. Vargas used the taser instead of another tool because it was the least lethal.

Patrol Guide Procedure 221-01 states that when determining if force is reasonable, uniformed members of service should consider the following: “The nature and severity of the circumstances, actions taken by the subject, duration of the action, immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to the number of MOS, size, age, and condition of the subject in comparison to the MOS, subject’s violent history, if known, presence of hostile crowd or agitators, subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.” (BR15)

Patrol Guide Procedure 221-02 states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps (BR16).

Patrol Guide Procedure 221-08 states that when a member of service is considering the use of a conducted electrical weapon (CEW), they must consider the totality of the circumstances and decide if such a use of force is reasonable and necessary to overcome resistance when effecting an arrest or taking an emotionally disturbed person into custody. Specifically, they should consider the factors noted in PG 221-01—including “the nature and severity of the circumstances, actions taken by the subject, duration of the action, immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to the number of MOS, size, age, and condition of the subject in comparison to the MOS, subject’s violent history, if known, presence of hostile crowd or agitators, subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.” If possible, officers should issue a verbal warning to the intended subject and other members of service present prior to discharging the CEW. A CEW should never be used in cartridge or drive stun mode on a rear-cuffed prisoner. (BR17).

Although § 87(2)(b) was actively resisting officers' attempts to place him in the vehicle while they waited for an ambulance, it was undisputed that he was rear-handcuffed and outnumbered by officers. § 87(2)(g)

§ 87(2)(g) it recommended that **Allegation D** be substantiated.

Allegation (E) Discourtesy: Police Officer Frankie Dodd spoke discourteously to § 87(2)(b)

Allegation (F) Discourtesy: Sergeant David Vargas spoke discourteously to § 87(2)(b)

PO Dodd’s BWC (BR05) captures him telling § 87(2)(b) to “stop being an idiot,” at the 02:41 mark. At the 04:11 mark, he tells § 87(2)(b) to stop being a “fucking clown,” multiple times.

Sgt. Vargas's BWC (BR04) captures him calling § 87(2)(b) a "little kid" and a "little baby" several times throughout the incident. At the 02:00 mark, Sgt Vargas tells § 87(2)(b) to stop being a "little kid," as he refuses to enter the vehicle. At the 03:05 mark, Sgt. Vargas says to § 87(2)(b) "little baby man, acting up," as he continues resisting. At the 03:30 mark, Sgt. Vargas says, "little baby acting up. As soon as you get arrested you act like a little baby." At the 16:35 mark, Sgt. Vargas says to § 87(2)(b) "acting like a little kid, acting like a child," while placing him in the ambulance.

§ 87(2)(b) did not recall this incident and was unable to provide a statement (BR30).

Sgt. Vargas (BR18) explained that he called § 87(2)(b) a kid and a baby multiple times because § 87(2)(b) had been acting normally, like an adult, before he was handcuffed. However, after he was handcuffed, his behavior changed. He did not provide any other reason why he made these statements.

According to the Department Advocate Office, PO Dodd retired from the NYPD on September 9, 2022 (BR13). As such, the investigation did not obtain a statement.

Patrol Guide procedure 200-02 (BR19) notes that the NYPD's mission is to, in partnership with the community, value human life, respect the dignity of each individual, and render our services with courtesy and civility, while also maintaining a higher standard of integrity than is generally expected of others.

Administrative Guide 304-06 (BR20) notes that officers are prohibited from using discourteous or disrespectful remarks regarding another person's age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability.

DAO-DCT 2015-15012 (BR21) found that officers are prohibited from using discourteous language, except when in a highly dangerous or stressful situation. Officers shall not use discourteous language that serves no legitimate purpose other than to belittle.

§ 87(2)(g) it is recommended that **Allegation E** be closed as **miscellaneous-subject retired**.

It is undisputed that § 87(2)(b) was actively resisting while officers attempted to place him in the vehicle. § 87(2)(g)

As such, it is recommended that **Allegation F** be **substantiated**.

Allegation (G) Force: Police Officer Michael Riggio used physical force against § 87(2)(b)

Allegation (H) Force: Police Officer Jason Lopez used physical force against § 87(2)(b)

Allegation (I) Force: Police Officer Steve Silverstein used physical force against § 87(2)(b)

Allegation (J) Force: Police Officer Frankie Dodd used physical force against § 87(2)(b)

Allegation (K) Force: Police Officer Steve Silverstein used a chokehold against § 87(2)(b)

Allegation (L) Force: Police Officer Steve Silverstein restricted § 87(2)(b) breathing.

Allegation (M) Abuse of Authority: Police Officer Michael Riggio damaged § 87(2)(b) property.

Allegation (N) Abuse of Authority: Police Officer Steve Silverstein damaged § 87(2)(b) property.

PO Siennick's BWC (BR06) captures PO Siennick at the rear of the vehicle when placing § 87(2)(b) inside, thus capturing all of the officers' roles most clearly. At the 02:18 mark, PO Silverstein and PO Lopez are on the rear, by the driver's side, while PO Riggio and PO Dodd are pushing § 87(2)(b) into the vehicle on the right side. PO Riggio and PO Dodd pull § 87(2)(b)

§ 87(2)(b) arms down, causing him to bend. PO Silverstein pulls § 87(2)(b) into the vehicle from the opposite side of the vehicle. § 87(2)(b) screams that he is scared for his life.

PO Lopez's BWC (BR03) shows, at the 09:29 mark, that § 87(2)(b) button down shirt is secure on his body and without damage. At the 10:40 mark, PO Silverstein pulls § 87(2)(b) into the vehicle by pulling his arms. § 87(2)(b) pulls away from PO Silverstein, saying that he does not want to go with them. PO Silverstein pulls § 87(2)(b) further toward him. § 87(2)(b) pushes his head outside of the rear of the vehicle, toward PO Silverstein. PO Lopez pushes § 87(2)(b) head into the vehicle. PO Silverstein pushes § 87(2)(b) upper body into the vehicle. § 87(2)(b) screams, "My neck. They're ripping my clothes." His neck and clothes are not clearly visible on this BWC or any other officers' BWC. § 87(2)(b) continues pushing his body out of the vehicle, and PO Silverstein pushes his upper body inside. § 87(2)(b) says he is having an anxiety attack and cannot go in the vehicle. At the 11:43 mark, § 87(2)(b) presses his face toward the b-pillar, near the opened rear door. He repeats that he wants to kill himself and that he does not feel safe. At the 21:47 mark, after the struggle is over and officers escort § 87(2)(b) to the ambulance, his shirt is completely open and hanging from his arms.

PO Ortiz's BWC (BR07) shows, at the 02:35 mark, that when pushing § 87(2)(b) into the vehicle, PO Silverstein places his hand on the front of § 87(2)(b) neck, for about a second. He moves his hand to § 87(2)(b) shoulder and continues pushing him in. Three frame by frame photos capture the contact more clearly (BR24).

PO Riggio's BWC (BR08) shows that, at the 10:55 mark, § 87(2)(b) is sitting behind the front passenger seat with his legs outside of the vehicle. PO Riggio grabs his legs to place them in the vehicle. § 87(2)(b) says, "Why you stomping my feet for," while his feet are under the rear passenger door by PO Dodd. It is unclear if anyone's feet made contact with § 87(2)(b) leg. At the 11:59 mark, PO Riggio pulls § 87(2)(b) left leg toward himself, causing § 87(2)(b) to sit up behind the front passenger seat. The officers are able to close the door behind the driver's seat. At the 12:08 mark, while § 87(2)(b) right leg is outside of the vehicle, he screams, "My leg. They're pushing my leg under the car." None of the BWC videos capture his leg clearly at that moment, including any indication that an officer pushed his leg under the car.

Sgt. Vargas's BWC (BR04) shows, at the 02:05 mark, that PO Dodd is holding onto the rear passenger door, looking down toward § 87(2)(b) feet, and making some kind of downward motion. His legs are not captured, but § 87(2)(b) makes the comment about his feet being stomped on.

§ 87(2)(b) did not recall this incident and was unable to provide a statement (BR30).

PO Riggio stated (BR10) that he and who he believed was PO Ortiz pushed § 87(2)(b) legs and shoulders into the rear of the vehicle from the passenger side. Officers, including PO Lopez, stood by the driver's side and pulled § 87(2)(b) further into the vehicle. § 87(2)(b) threw the top half of his body to the driver's side, with the bottom half on the passenger side. PO Riggio pulled his body back towards the passenger side, although he was unsure how he pulled § 87(2)(b) or what part of his body he came in contact with. § 87(2)(b) hooked his feet around the rear passenger door and put his face between the door and door frame of the driver's side door. PO Riggio unlatched § 87(2)(b) foot from the bottom door, while § 87(2)(b) kicked him in the chest a couple of times causing his BWC to fall off. § 87(2)(b) also screamed that the officers were choking him, but no officers were near his neck or made contact with the neck area. There was no indication that he could not breathe and he never said he could not other than yelling that he was being choked. § 87(2)(b) shirt was ripped while he was pulling away from the officers. However, PO Riggio was unable to specify how. The ripping of the shirt was incidental to getting § 87(2)(b) in the vehicle.

PO Lopez's statement (BR09) is generally consistent with PO Riggio's, except for the following. When § 87(2)(b) pushed his upper body out of the rear driver's side, PO Lopez and PO Silverstein pushed § 87(2)(b) upper shoulders into the vehicle. PO Lopez pushed § 87(2)(b) head down, while PO Silverstein repositioned § 87(2)(b) body to fit into the

vehicle. § 87(2)(b) made statements about the officers killing him, beating him up, and said that he hated the officers. § 87(2)(b) said that he wanted to go to the hospital, that he wanted to kill himself, and that he had anxiety.

PO Silverstein stated (BR22) that while on the rear driver's side of the vehicle, he grabbed § 87(2)(b) arms and pulled him towards the opening of the rear passenger door so that § 87(2)(b) would not try to kick the door open as he was a flight risk and had made suicidal statements. § 87(2)(b) flung his head back, knocking off PO Silverstein's BWC. § 87(2)(b) moved his head back multiple times, stretching out his feet, kicking the passenger door open, and stiffing up his body. PO Silverstein pushed § 87(2)(b) shoulder down to push him inside. After watching PO Ortiz's BWC, PO Silverstein stated that he did not remember § 87(2)(b) shirt being ripped or if he did anything to rip § 87(2)(b) shirt. PO Silverstein unintentionally made contact with § 87(2)(b) neck, while trying to get him back into the RMP so he would not fall outside. PO Silverstein had no other reason to make contact with § 87(2)(b) neck area and observed no indication that § 87(2)(b) breathing was restricted.

According to the Department Advocate Office, PO Dodd retired from the NYPD on September 9, 2022 (BR13). As such, the investigation did not obtain a statement.

Threat, Resistance, or Injury Report #§ 87(2)(b) (BR14) notes, in the incident details, that § 87(2)(b) was pushing and shoving the officers in order to make his way out of the police vehicle as they tried to push him inside. § 87(2)(b) made multiple statements indicating that the officers used excessive force, including that they were choking him.

Medical Treatment of Prisoner Report #§ 87(2)(b) (BR23) notes, in the remarks, that § 87(2)(b) became highly combative when taken into custody—pushing, kicking, twisting his body, and refusing simple instruction. The media section documents minimal abrasions on § 87(2)(b) right shoulder. No other injuries are documented.

Patrol Guide Procedure 221-01 (BR15) states that when determining if force is reasonable, uniformed members of service should consider the following: “The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject's violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.” Members are prohibited from using a chokehold, which is defined as “any pressure to the throat or windpipe [that] may prevent or hinder breathing or reduce intake of air.

Patrol Guide Procedure 221-02 (BR16) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control.

Onderdonk v. State 170 Misc. 2d 155 found that property damage is reasonable when conducting a law enforcement activity, as long as there is an absence of unprofessional, unreasonable, or excessive behavior (BR12).

It is undisputed that § 87(2)(b) was physically resisting after he mentioned wanting to go to the hospital because of suicidal ideations. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations G, H, and I** be closed as **within NYPD guidelines**.

While pushing § 87(2)(b) into the vehicle, PO Silverstein's hand was briefly on § 87(2)(b) neck (**BR24**). However, as noted in his statement and as seen in the discussed BWC, PO Silverstein's contact with the neck area was brief and appeared incidental to his pushing § 87(2)(b) into the vehicle. § 87(2)(g)

As such, it is recommended that **Allegations K and L** be closed as **unable to determine**.

§ 87(2)(g) it is recommended that **Allegation J** be closed as **miscellaneous-subject retired**.

The discussed BWC captures § 87(2)(b) button down shirt fitting securely on his body prior to police contact. During the struggle, § 87(2)(b) stated that the officers were ripping his clothes. After the struggle in the vehicle, § 87(2)(b) shirt was completely open and hanging from his arms. The footage did not clearly capture the moment when § 87(2)(b) shirt was altered. § 87(2)(g)

recommends that **Allegations M and N** be closed as **within NYPD guidelines**.

Allegation (O) Force: Police Officer Luis Ortiz used physical force against § 87(2)(b)

Allegation (P) Force: Police Officer Luis Ortiz used a chokehold against § 87(2)(b)

Allegation (Q) Force: Police Officer Luis Ortiz restricted § 87(2)(b) breathing.

PO Ortiz's BWC (**BR07**) best captures these allegations, though is still not a comprehensive account. At the 03:50 mark, § 87(2)(b) is sitting behind the front passenger seat, with his right leg outside of the vehicle. PO Ortiz approaches, grabs § 87(2)(b) right leg, and pushes it into the vehicle. § 87(2)(b) uses his left leg to push off of the door frame and subsequently moves his legs around to escape PO Ortiz's grasp. PO Ortiz hooks his left arm underneath § 87(2)(b) right leg and pushes it into the vehicle. § 87(2)(b) continuously screams, "My leg!" At the 04:08 mark, § 87(2)(b) says "He's choking me," multiple times. His neck is not captured in this video or any other BWC, but PO Ortiz is the only officer making contact with § 87(2)(b)

§ 87(2)(b) did not recall this incident and was unable to provide a statement (**BR30**).

PO Ortiz's statement (**BR25**) was generally consistent with the BWC, with the following additional information. PO Ortiz did not do anything to § 87(2)(b) leg that could have caused pain. § 87(2)(b) made statements about being choked. PO Ortiz acknowledged that he was the officer closest to § 87(2)(b) but he denied making any contact with his neck, throat, or windpipe. PO Ortiz did not see any other officer in the vicinity of § 87(2)(b) neck at any point. PO Ortiz did not do anything that could have restricted § 87(2)(b) breathing, nor did he observe any indication that § 87(2)(b) could not breathe.

PO Riggio (**BR09**) stated that § 87(2)(b) screamed that the officers were choking him, but none of the officers were near his neck or made contact with the neck area.

PO Lopez (**BR10**) stated that § 87(2)(b) did not make any statements around being choked. He did not observe any officer making contact with § 87(2)(b) neck.

Threat, Resistance, or Injury Report #§ 87(2)(b) (**BR14**) notes that § 87(2)(b) was pushing and shoving the officers in order to make his way out of the police vehicle as they tried to push him inside. § 87(2)(b) made multiple statements indicating that the officers used excessive force, including that they were choking him.

Patrol Guide Procedure 221-01 (**BR15**) states that when determining if force is reasonable,

uniformed members of service should consider the following: “The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject’s violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.” Members are prohibited from using a chokehold, which is defined as “any pressure to the throat or windpipe [that] may prevent or hinder breathing or reduce intake of air.

Patrol Guide Procedure 221-02 (BR16) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control.

After PO Riggio brought § 87(2)(b) to the right side of the back seat, § 87(2)(b) continued resisting by refusing to place his legs into the vehicle. Although unclear, the footage captures PO Ortiz pushing § 87(2)(b) leg into the vehicle. § 87(2)(b) screams about his leg, but the footage does not capture PO Ortiz positioning the leg in a manner which would cause § 87(2)(b) pain § 87(2)(g).

As such, it is recommended that **Allegation O** be closed as **within NYPD guidelines**.

The discussed BWC captures § 87(2)(b) complaining of being choked while PO Ortiz pushed his leg into the vehicle. However, neither PO Ortiz’s BWC nor any other officers’ BWC captures § 87(2)(b) head and neck area at the time the statements were made. § 87(2)(g)

As such, it is recommended that **Allegations P and Q** be closed as **unable to determine**.

Allegation (R) Force: Police Officer Michael Riggio used physical force against § 87(2)(b)

Allegation (S) Force: Police Officer Jason Lopez used physical force against § 87(2)(b)

Allegation (T) Force: Sergeant David Vargas used physical force against § 87(2)(b)

Allegation (U) Force: Police Officer Dennis Gannon used physical force against § 87(2)(b)

Allegation (V) Force: Police Officer Paula Martorella used physical force against § 87(2)(b)

Allegation (W) Force: Police Officer Luis Ortiz used physical force against § 87(2)(b)

Allegation (X) Force: Police Officer Luis Ortiz used physical force against § 87(2)(b)

Sgt. Vargas’s BWC (BR04) shows that, at the 14:00 mark, as the officers escort § 87(2)(b) into the ambulance from the side entrance, he sits down on the steps and refuses to enter. He repeatedly asks for his cellphone and remains seated on the steps. At the 15:20 mark, PO Lopez and PO Riggio escort § 87(2)(b) to the rear of the ambulance, where the officers place him on a gurney.

PO Dodd’s BWC (BR05) shows that, at the 16:12 mark, PO Riggio, PO Lopez, PO Ortiz, Sgt. Vargas, PO Gannon, and PO Martorella are securing § 87(2)(b) on the ambulance stretcher. PO Lopez is holding § 87(2)(b) arms and upper body, while the remaining officers are holding

onto § 87(2)(b) lower body. § 87(2)(b) moves his left leg off the gurney, and Sgt. Vargas places it back on the gurney. At the 16:27 mark, PO Riggio hands PO Dodd his leg shackles. PO Dodd walks to § 87(2)(b) right side and places the shackle on his ankle. PO Ortiz has his right forearm pressing down on § 87(2)(b) leg, with his elbow on § 87(2)(b) knee. § 87(2)(b) screams, "Why you hitting my knees like that?" § 87(2)(b) legs continuously move, and an officer says, "stop kicking." At the 16:53 mark, the officers secure the leg strap on § 87(2)(b). At the 17:20 mark, PO Dodd secures the leg shackles to the base of the gurney with a pair of handcuffs.

PO Ortiz's BWC (BR07) shows, at the 16:29 mark, as the officers help the EMTs move the gurney into the ambulance, § 87(2)(b) brings his knees close to his chest, moving his legs freely, despite being strapped in. PO Ortiz and other officers hold § 87(2)(b) legs down. At the 16:52 mark, PO Ortiz enters the ambulance with § 87(2)(b). He continues holding § 87(2)(b) legs down, apparently using his forearm and elbow. § 87(2)(b) right leg is secured in shackles to the gurney, but his left leg is only secured by the straps. § 87(2)(b) asks why PO Ortiz is crushing his legs with his elbow. PO Ortiz tells § 87(2)(b) to stop moving. § 87(2)(b) denies moving, but he is moving his upper body left and right. At the 17:07 mark, PO Ortiz pushes down on § 87(2)(b) knee with his forearm and elbow. PO Ortiz continues to push down on § 87(2)(b) knee area until 17:36 mark, at which point he moves his hand to hold § 87(2)(b) ankle.

§ 87(2)(b) did not recall this incident and was unable to provide a statement.

PO Riggio (BR10) stated that he did not recall his specific involvement in securing § 87(2)(b) on the stretcher, but he remembered § 87(2)(b) actively resisting by trying to sit up on the stretcher, pulling his body off the stretcher, and trying to flip it over.

PO Lopez (BR09) stated that when placing § 87(2)(b) on the stretcher, § 87(2)(b) violently thrashed his body to flip the stretcher over. PO Lopez held § 87(2)(b) shoulders and upper body against the gurney. He was unsure which other officers were involved and their roles. It took two to three minutes to place § 87(2)(b) inside the ambulance.

PO Ortiz stated (BR25) that when placing § 87(2)(b) on the gurney, he assisted PO Lopez and PO Riggio in securing § 87(2)(b) onto the gurney. § 87(2)(b) was kicking his legs, and PO Ortiz focused on keeping them steady. He initially stated that he held § 87(2)(b) legs in place with his hands. However, after watching PO Dodd's BWC, from the 16:30 mark, PO Ortiz recalled that he used his forearm to hold § 87(2)(b) legs down. He heard § 87(2)(b) make comments about someone using their elbow to press on his knee, but after watching the video twice, PO Ortiz was unable to tell if his elbow pressed on § 87(2)(b) knee. He did not recall doing so. After some time, they were able to secure the three straps onto § 87(2)(b) body. § 87(2)(b) remained noncompliant, occasionally reaching to his side, with his handcuffed wrists, to unfasten the center strap.

Sgt. Vargas stated (BR18) that § 87(2)(b) tried to get off the gurney when the officers placed him there. He managed to unbuckle the center strap, even with his hands in cuffs. Sgt. Vargas placed his legs on the gurney and attempted to secure the strap around them. He did not recall what the other officers did to restrain § 87(2)(b).

PO Gannon and PO Martorella were not interviewed because their statements would not affect the disposition of the allegations.

Patrol Guide Procedure 221-01 (BR15) states that when determining if force is reasonable, uniformed members of service should consider the following: "The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject's violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence."

- § 87(2)(g), § 87(4-b)
- § 87(2)(g)
- Police Officer Michael Riggio has been a member of service for 11 years. He has been named the subject in four other CCRB cases and 11 other allegations, once of which has been substantiated:
 - 202001662 involves a substantiated allegation of a discourteous word. The CCRB recommended Command Discipline-A, which the NYPD imposed.
 - § 87(2)(g)
 - Police Officer Jason Lopez has been a member of service for 11 years. He has been named the subject in four other CCRB complaints and six allegations, § 87(2)(g), § 87(4-b)
 - § 87(2)(g), § 87(4-b)
 - § 87(2)(g)
 - Police Officer Luis Ortiz has been a member of service for nine years. He has been the subject of five other CCRB complaints and seven allegations, none of which have been substantiated. § 87(2)(g)
 - Police Officer Steve Silverstein has been a member of service for seven years. He has been the subject of four other CCRB complaints and six allegations, § 87(2)(g), § 87(4-b)
 - 202006126 involves a substantiated allegation of physical force. The CCRB recommended Command Discipline-B. The NYPD disposition is not noted.
 - § 87(2)(g), § 87(4-b)
 - § 87(2)(g)
 - Police Officer Frankie Dodd retired on September 9, 2022. Prior to his retirement, he was the subject of two other CCRB complaints and two allegations, none of which were substantiated.
 - Police Officer Dennis Gannon has been a member of service for 14 years. He has been named the subject in three other CCRB complaints and 7 other allegations, once which has been substantiated:
 - 202102531 involves a substantiated allegation of refusal to provide shield number. The NYPD imposed Command Discipline- A.
 - § 87(2)(g)
 - Police Officer Paula Martorella has been a member of service for 17 years. She has been named the subject in one other CCRB complaint and one allegation, which was not substantiated.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- [illegible]

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____